



कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. LC-4(1)2016/

Dated: 25.01.2017

25 JAN 2017

OFFICE CIRCULAR

Subject: Revision of fee payable to advocates on the panel of the Central Board/EPFO and other legal practitioners who may be engaged- regarding.

The undersigned is directed to convey the approval of competent authority on revision of the structure of fee in relation to panel advocates and various categories of legal practitioners engaged by the Central Board/EPFO. The revised rates are laid down in four tables -A, B, C and D - contained in the instant circular.

A. Supreme Court:

The fee structure applicable to a legal practitioner engaged in connection with litigation in the Supreme Court will be at the rates revised as under:-

Table - A

Sl. No.	Item of Work	Fee for legal practitioner (in Rs.)
1.	All Regular Appeals and All defended Writ Petitions for final hearing	Rs.9,000/- per case per day
2.	All defended Admission matters	Rs.4,500/- per

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	(SLP/TP/WP/etc)	case per day
3.	Settling of Pleadings	--
4.	Appearance in Miscellaneous Applications	--
5.	Conference	
6.	Out of Headquarter	Rs.9,000/- daily fee for the days of his absence from HQ
7.	Conveyance charges for performing local journey while outside Headquarter	Rs.1500/-
8.	Clerkage	Nil
9.	Drafting SLP/Counter Affidavit/Rejoinder	Rs.3000/- per case
10.	Drafting Written Submission	Rs.3000/- per case
11.	Drafting or Appearance in Miscellaneous Applications (including mentioning of the case/Caveat/Clearance/obtaining the number and taking date for hearing)	Rs.3000/- per case

Note:- Advocates of good repute and more than 20 years experience may also be engaged at the rates applicable to Group A Panel Counsel in Ministry of Law and Justice Circular dated 01.10.2015, reproduced as below:-

Sl. No.	Item of Work	Fee for legal practitioner (in Rs.)
1.	All Regular Appeals and All defended Writ Petitions for final	Rs. 13,500/- per case per day

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	hearing	
2.	All defended Admission matters (SLP/TP/WP/etc)	Rs 9,000/- per case per day
3.	Settling of Pleadings	Rs. 5,250/- per case
4.	Appearance in Miscellaneous Applications	Rs. 4,500/- per case
5.	Conference	Rs.900/- per case
6.	Out of Headquarter	Rs.13,500/- daily fee for the days of his absence from HQ
7.	Conveyance charges for performing local journey while outside Headquarter	Rs.1500/-
8.	Clerkage	Nil
9.	Drafting SLP/Counter Affidavit/Rejoinder	_____
10.	Drafting Written Submission	_____
11.	Drafting or Appearance in Miscellaneous Applications (including mentioning of the case/Caveat/Clearance/obtaining the number and taking date for hearing)	_____

All other terms and conditions applicable to Panel Counsels in the pre-revised OM bearing number No.21(04)1999-Judl dated 24.09.1999 read with OM bearing number No.21(05)2011-Judl dated 01.10.2011 issued by the Ministry of Law and Justice shall continue to remain applicable.

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B. High Court, EPFAT, CAT, and NCDRC:-

The fee structure applicable to Panel Counsels, Assistant Solicitors General of various High Courts, Central Government Standing Counsel, Senior Central Government Standing Counsel (Sr.CGSC) engaged in connection with litigation in all High Courts, EPFAT, CAT, and NCDRC are revised as per the following rates:-

Table-B

S.No.	Item of work	Revised fee
1	Suits, Writ Petitions and Appeals, including oral Applications for Leave to Appeal to Supreme Court in Writ Petitions and Revision Petitions including Special civil applications in High Courts	Rs. 9,000/- per case per day of effective hearing. In case of non-effective hearing Rs. 1,500/- per day subject to maximum of 5 hearings.
2	Application for Leave to Appeal to Supreme Court in Writ Petitions-	Rs. 3,000/- per case
3	Drafting or Settling pleadings, and Affidavits (per pleadings)	Rs. 3,000/- per case
4	Miscellaneous Application	Rs. 3,000/- per case
5	Conference	Rs 900/- per conference subject to the following limitations:- (i) In respect of for settling pleadings- one conference. (ii) In respect of hearing of Writ matters, Suits, appeals and Supreme courts leave applications etc- Three conferences

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6	Miscellaneous and out of pocket expenses	As per actuals to the satisfaction of the concerned field office
7.	Written opinions and written advice including advice on evidence (inclusive of consultation)	Rs. 3,750/-

- ❖ All other terms and conditions applicable to the above mentioned Counsels in various High Courts / CAT Benches as laid down vide the Department of Legal Affairs's, OM No. 24(2)] 99-judl., OM No. 26(3)99-Judl.. OM No. 25(3)/99-Judl., and OM No. 26(2)/9 Judl., all dated 24.09.99, read with OM No-26(1)/2005-Judl. dated 31.01.2008, OM No. 26(1)/2011- Judl., dated 01.10.2011, OM No.23(2)2001-Judl & OM No. 22(02)2001 dated 14.7.2001 and OM 23(2)2011-Judl dated 1.10.2011 shall continue to remain applicable.

C. District and Subordinate Courts:

The fee structure applicable for counsels empanelled by the Central Board/EPFO, Central Govt Standing Counsel (CGSC), Sr. CGSC , Standing Govt Counsel, Addl. Standing Govt. Counsel for District and Subordinate Courts and District Consumer Forums for such Courts and Forums, will be as under.-

Table-C

S.No.	Item of work	Revised fee
1.	Fee for effective hearing	Rs. 1,800 per day
2.	Fee for non-effective hearing	Rs. 600 per day (limited to 5 such hearings in a

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		case)
3	Fee for drafting Written Statement, Grounds of Appeal etc.	Rs. 1,500 per pleading
4.	Fee for drafting other pleadings of misc. nature	Rs. 600 per pleading
5.	Fee per Conference	Rs. 900 (limited to 5 such conferences in a case / group of identical cases)
6.	Daily fee for out of Headquarters	Rs.2,700 per day
7.	Conveyance charges for local journey outside Headquarters	Rs. 900 [lump sum]
8.	Expenses for stay in hotels	Rs. 1,800 per day
9.	Clerkage	@ 10% of total fee excluding miscellaneous and out of pocket expenses (maximum Rs. 5,250 in a case)
10.	Fee for identical Cases	Full fee in the 1st case and Rs. 750 per suit for connected cases (max. 3

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		cases)
11.	Miscellaneous and out of pocket expenses	As per actuals to the satisfaction of the OIC of RO/SRO

All other terms and conditions applicable to above mentioned Counsels vide Department of Legal Affairs's OM No. 27/111)/1999-Judl dated 24.09.1999 read with OM No. 27(25)/2011-Judl. dated 01.09.2011 shall continue to remain applicable.

D. Arbitration Cases:

The Fee structure applicable to Senior/Junior Arbitration Panel Counsel:-

Table-D

S.No.	Details of work	Revised Fee
1.	Fee for effective hearing	
	Senior Counsel	Rs.2,250/- per appearance
	Junior Counsel	Rs.1,500/- per appearance
2.	Fee for non-effective hearings	
	Senior Counsel	Rs.450/- per appearance
	Junior Counsel	Rs.300/- per appearance (maximum four such hearings)
3.	For drafting pleadings	
	Senior Counsel	Rs.1,500/- per pleading
	Junior Counsel	Rs.750/- per pleading
4.	Conference Fee	
	Senior Counsel	Rs.450/- per conference
	Junior Counsel	Rs.300/- per conference

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		(Limited to three such conference in a case)
5.	Daily fee for out of Headquarter	
	Senior Counsel	Rs.3,000/- per day
	Junior Counsel	Rs.2,250/- per day

All other terms and conditions applicable to OM Ho. 30(3)/99-Judl. dated 24.09.99 read with OM No. 25(11)/2005/Judl. dated 31.01.2008, shall continue to remain applicable.

General Instructions:

- i. The revised fee structure is broadly based on the circular bearing No. 26(1)2014/Judl dated 1.10.2015 read in conjunction with the circulars dated 24.9.1999, 1.10.2011 and various clarifications issued by the Department of Legal Affairs, Ministry of Law and Justice, Govt. of India.
- ii. Rates of fee prescribed under Table-B shall also be applicable for items of legal work done by an advocate in connection with a litigation in any other Tribunal(s) or Adjudicatory Forum.
- iii. A claim for fee for attending court hearing will be entertained only if the appearance of advocate(s) engaged (conducting or arguing counsel) in a case is recorded in the Daily Order Sheet related to the hearing. In any case where an advocate claims to have participated in a hearing but his name does not find mention in the related Daily Order Sheet, the onus to prove the participation in the said hearing shall lie with the advocate concerned.
- iv. Claim for drafting/ filing/ settling of pleadings/petition/OA/ counter affidavit/rejoinder/caveat/misc. application e.t.c. will be entertained only when a copy of the filed document is enclosed with the bill.
- v. Claim for typing and photocopying charges will be restricted to the number of pages in the Petition/Counter Affidavit/Rejoinder/Misc. Application/etc.

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vi. A bill in respect of an individual legal case may be presented by an advocate for each item of work (as listed in the able above) as soon as it becomes due without waiting for that legal case to get over. The EPFO office concerned shall process the bills immediately and the payment shall be released within a month of the date of the receipt of bill complete in all respect.

vii. The phrase "Central Board " or "EPFO" includes its offices and officers and should be construed according to the demand of the context

viii. **Identical cases** have been explained in OM dated 24.09.1999 of Ministry of Law and Justice, GOI, as follows:

Two or more cases where substantially identical questions of law or facts are involved and where the main difference is in the names, addresses of the parties concerned, amount of money involved, etc., where the common or identical judgments are delivered irrespective of the fact whether all the cases are heard together or not.

ix. **Effective Hearing Means:**

- (a) A hearing wherein either one or both parties involved in case are heard by the Court is an effective hearing. However, in a hearing if merely a case is mentioned and adjourned or only directions are given or only judgment is delivered by the Court, it would not constitute an effective hearing but will be termed as non-effective hearing.
- (b) In a civil case, a date, - on which plaint/petitioner/written statements is filed or the issues are framed or a hearing in which witnesses are examined by way of filing of affidavit or otherwise or cross-examination take place or an important miscellaneous application is argued or final arguments take place, - is an instance of effective hearing.
- (c) In a criminal case, a date, - where charge or notice, as the case may be, is framed against the accused or hearing wherein recording of testimonies of witness including cross examination or recording

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of statement of the accused under section 281 of 313 Cr. P.C. take place or defence witnesses are examined or argument on any important miscellaneous application is heard, - is an instance of effective hearing.

An empanelled advocate or other legal practitioner to whom a case has been assigned, is bound to attend all hearings in that case-whether effective or non-effective.

- x. Travel out of Headquarters: If a counsel is required to go out of the Headquarters in connection with assigned legal work like for conference with a Senior Counsel, appearance in a court outside the Headquarters etc., he will be entitled to reimbursement of expenses incurred for travel, lodging and boarding at par with a Group A Officer in Junior Administrative Grade (JAG).
- xi. The competent authority to approve the legal fee bill shall be as per the Schedule of Financial and Administrative Powers, issued by the Finance Division of EPFO, as amended from time to time. It has also been clarified by Finance Division of Head Office vide its note dated 01.09.2016 that the word used "in each case" refers to recurring expenditure. Hence, the power delegated under item No. 22 may be used for the sanction of the bill amount by the field offices, accordingly.
- xii. If in a particular case, it is ascertained by the OIC that the best interest of the Social Security or the Central Board/EPFO can be served by engaging an advocate outside the panel, the reason for engaging such advocate may be recorded by the officer in charge of the RO or SRO concerned and conveyed (through proper channel) to the ACC of the Zone concerned, for his/her approval. If an advocate outside the panel is engaged, the fee structure prescribed in the instant circular shall apply to the work done by such advocates as well.
- xiii. An advocate can be engaged from outside the panel of the Central Board/EPFO, against a fee which is higher than that prescribed in the instant circular, if his/her engagement for a litigation is considered desirable to protect or promote the best interest of social security or the Central Board/EPFO.

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Such an advocate can be engaged only after recording the reason for his/her engagement and after securing the permission of the Central Provident Fund Commissioner atleast two weeks before the date of hearing.

- xiv. Any issue on which this circular is silent or lacks clarity, shall be examined by the ACC(Zone) concerned and in case the ACC(Zone) feels the need for any clarification, the same may be referred to Head Office clearly specifying the point on which clarity is sought.
- xv. The revised rates shall be applicable from the date of issue of this communication.

(This issues with the approval of CPFC.)



(DR. S.K. THAKUR)

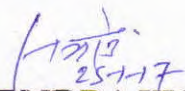
ADDL. CENTRAL PF COMMISSIONER-I (Legal)

To

1. All Addl. CPFC (Zones)/Director (PDUNASS)
2. All ROs/SROs
3. All Officers-in-charge of ZTIs and Sub-ZTI

Copy to:-

1. FA&CAO
2. CVO
3. ACC(HQ)(HR)/ ACC(HQ)(Compliance)
4. Deputy Director (OL), Head Office for issue of Hindi version.



(SAMARENDRA KUMAR)

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